

**26CMCV00208 26CMCV00208**

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-02

Motion: DEFENDANT'S MOTION TO SET ASIDE DEFAULT JUDGMENT

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Case Number: 26CMCV00208 Hearing Date: July 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CYNTHIA CAROLINA DEJTISAKDI, et al.,

Plaintiffs,

vs.

DAMOND

TO SHUMBI LAMPKIN,

Defendant.

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CASE NO: 26CMCV00208

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO SET ASIDE DEFAULT JUDGMENT

Dept.

A

DATE:

July 2, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 01/29/2026

TRIAL:

None set

MOVING

PARTY: Defendant Damond To  
Shumbi Lampkin

RESPONDING

PARTY: None

## 1. Background

This is a quiet title action. Plaintiffs Cynthia Carolina Dejtisakdi and Priscilla Carolina Chavez (collectively, "Plaintiffs") allege that they are the sole owners of the property located at 2009 E. 120th St, Los Angeles, CA 90059, County of Los Angeles, State of California (the "Property"). Plaintiffs allege that defendant Damond To Shumbi Lampkin ("Defendant") claims an interest in the Property. Plaintiffs seek to clarify ownership interests in the Property.

Default was entered against Defendant on April 2, 2026.

## 2. Discussion

Defendant moves to set aside default judgment. Default was entered against Defendant on April 2, 2026. However, default judgment has not yet been entered. The court will therefore treat the motion as a motion to set aside or vacate the April 2, 2026 default.

Defendant contends that his failure to respond was not intentional and that he has a meritorious defense. Plaintiffs do not oppose this motion.

There are four bases upon which a defendant may seek to set aside a default judgment in unlawful detainer proceedings: (1) relief for "mistake, inadvertence, surprise, or excusable neglect" under Code of Civil Procedure section 473, subdivision (b), (2) the default judgment was void as a matter of law, (3) lack of actual notice under Code of Civil Procedure section 473.5, subdivision (a), or (4) equitable relief for extrinsic fraud or mistake. (*Rappleyea v. Campbell*

(1994) 8 Cal.4th 975, 981-982 (Rapplevea).)

Whenever an

application for relief from default is made within a reasonable time no more than six months after entry of default, is in proper form, and is accompanied by the moving party's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or excusable neglect, the court may vacate any (1) resulting default entered by the clerk against the moving party or (2) resulting default judgment or dismissal entered against the moving party, unless the court finds that the default or dismissal was not in fact caused by the moving party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) Excusable neglect is such as might have been the act of a reasonably prudent person under the same circumstances, exercising reasonable diligence. (Elms v. Elms (1946) 72 Cal.App.2d 508, 513.)

Defendant

contends that his failure to respond to the complaint was not intentional. However, Defendant does not provide any reason for his failure to respond that would support a finding of mistake, inadvertence, surprise, or excusable neglect, nor does Defendant provide a sworn affidavit to that effect. Accordingly, Defendant has failed to meet his burden of showing mistake, inadvertence, surprise, or excusable neglect. The court will therefore deny Defendant's motion to set aside the default entered against him.

Notwithstanding

the foregoing, in a quiet title action an evidentiary hearing is required to obtain default judgment under Code of Civil Procedure § 764.010. At the evidentiary hearing in this action, currently set for September 2, 2026, Defendant has the right to appear and present evidence irrespective of his defaulted status. (Code Civ. Proc. § 764.010.)

### 3. Conclusion

Based on the

foregoing, the court DENIES Defendant's motion to set aside the default. Defendant is ordered to give notice.

IT IS SO ORDERED.

DATED: July 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court